

1.

CASE #	CASE NAME	HEARING NAME
CVRI2300147	MCCOY. vs FLEETWOOD ALUMINUM PRODUCTS, INC.	MOTION FOR SUMMARY JUDGMENT OR IN THE ALTERNATIVE SUMMARY ADJUDICATION

Tentative Ruling: The hearing on this matter is continued to July 23, 2026, at 8:30 a.m.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2400354	EMERGENCY MEDICAL OFFICE, INC. vs AYOBİ, INC.	MOTION FOR ATTORNEYS FEES

Tentative Ruling: The Court GRANTS, in part, and DENIES, in part, Defendant Ayobi and Ayobi Inc.'s Motion for Attorney's Fees and Costs. The Court awards fees to Defendants at an hourly rate to \$600, resulting in a lodestar of \$33,900 for 56.5 hours, and fees as requested in the amount of \$450, all to be paid within thirty days of this Order.

In moving for fees and costs, Defendants refer the Court to attorney Lennemann's Declaration, ¶¶ 9-17, asserting that 56.5 hours were expended in this matter at a "reasonable" hourly rate of \$1,200. Additionally, per ¶18, Defendants state that they reasonably incurred costs in the amount of \$450.

It is undisputed that (1) Plaintiff executed they Settlement Agreement and Mutual Release of Claims Agreement; (2) that the Agreement contains a reciprocal prevailing party attorney's fee provision; (3) that Plaintiff failed to make either payment required by the Agreement and failed to respond to Defendants' attempts at informal resolution (both pre and post-Judgment); (4) that Defendants prevailed on its Breach of Contract claim at Trial; and (5) that the Court entered Judgment awarding Defendants damages, prejudgment interest, attorney's fees "Per Motion," and costs "Per Cost Bill."

A. CCP § 664.6 is not the only mechanism to enforce the Agreement

In the Opposition, Plaintiff contends that Defendants should have proceeded exclusively through CCP § 664.6 because the Agreement was written and signed. Therefore, Plaintiff's argument that virtually every attorney task performed after the filing of the Cross-Complaint was unnecessary fails. Nothing in Section 664.6 provides that it is the exclusive method for enforcing a settlement agreement. The issue before this Court is not whether another procedural option may also have existed. The issue is whether the legal services reflected in counsel's billing records were reasonably incurred in successfully enforcing the Agreement. And they appear to have been.

B. Plaintiff's authorities are not on point

Plaintiff relies on cases and suggests those decisions compel either denial or a drastic reduction of AYOB's contractual attorney's fees. They do not.

Chavez v. City of Los Angeles (2010) 47 Cal.4th 970 does not apply to a prevailing party's contractual fee recovery under CC § 1717. Plaintiff cites this case to contend that Defendants' fee request is disproportionate to the amount recovered and therefore should be denied. *Chavez* involved discretionary statutory attorney's fees under the Fair Employment and Housing Act following a limited damages award in a case that could have been brought as a limited civil action. The Supreme Court recognized that the governing statute vested broad discretion in the trial court to determine whether fees should be awarded under those circumstances. Here, Defendants seek contractual attorney's fees pursuant to an express attorney's fee provision governed by Civil Code § 1717. Unlike the statutory scheme considered in *Chavez*, Section 1717 exists to enforce the parties' contractual allocation of litigation expenses and to ensure reciprocity between contracting parties. Importantly, *Chavez* did not hold that attorney's fees exceeding the amount recovered are presumptively unreasonable. Nor did it establish any proportionality rule applicable to Civil Code Section 1717.

Another example is *Christian Research Institute v. Alnor* (2008) 165 Cal.App.4th 1315, cited for the proposition that an inflated fee request may justify denial of fees altogether. However, in *Christian Research Institute*, the trial court found that the prevailing party sought compensation for duplicated attorney effort, excessive staffing, unnecessary work, and time unrelated to the successful anti-SLAPP motion itself. The Court of Appeal affirmed the trial court's exercise of discretion under those facts, which are distinguishable from the instant case. Defendants here were represented by a single attorney. There was no duplication of attorney effort. There was no request for a multiplier. There were no multiple firms billing simultaneously. There were no unsuccessful contract claims requiring apportionment. Rather, here, counsel devoted approximately 56.5 hours over seventeen months to prosecuting one successful breach of contract claim from inception through trial, entry of Judgment, and preparation of the fee Motion.

C. The billings are sufficiently detailed

Plaintiff characterizes defense counsel's billing records as "vague" and "block billed." However, Defendants counsel identified (1) each date services were performed; (2) the amount of time devoted to the work; (3) the litigation event involved; and (4) the specific tasks performed. Plaintiff challenges entries such as preparation for hearings, client communications, drafting pleadings, preparation of case management documents, trial preparation, attendance at trial, preparation of judgment documents, and preparation of attorney-fee motion. These descriptions allow meaningful review to determine if the time expended was reasonable. There does not appear to be excess

billing. Notably, Plaintiff never identifies a single entry that is fabricated, unrelated to the successful contract claim, or demonstrably unnecessary. Instead, Plaintiff asks the Court to disregard entire categories of work solely because it believes Defendants should have pursued a different litigation procedure. Defendant does not challenge the accuracy of the billing records, but rather the strategy in enforcing the Agreement.

D. Necessary Hours Expended

As Defendants note, Plaintiff argues repeatedly that the Court must exclude from the fee calculation law and motion, trial preparation, trial attendance, case-management conferences, judgment preparation, and post-trial work because that work would have been unnecessary had Defendant filed a CCP § 664.6 motion. The argument ignores the litigation that occurred. After Plaintiff failed to perform the Agreement, Defendant pursued a breach of contract claim in pending litigation initiated by Plaintiff. Plaintiff answered. Plaintiff continued litigating. The matter proceeded through entry of Judgment and this attorney's fee Motion. Each stage of litigation required legal services. Once Plaintiff elected to contest liability rather than cure its breach, defense counsel had to litigate the case through judgment. The Court evaluates the legal services rendered considering the circumstances confronting counsel at the time - not through post-litigation hindsight. Significantly, the Agreement expressly authorizes recovery of attorney's fees incurred not only in "demonstrating the existence of a breach," but also in "any other contract enforcement efforts."

E. Counsel's Hourly Rate

Counsel charges \$1,200 per hour. In moving papers, Defendant submitted "evidence" establishing that its requested hourly rate had been previously approved by another recent California Superior Court proceeding. While not binding on this Court, Defendants contend that evidence is probative of the market value assigned to counsel's professional services.

The relevant inquiry is the reasonable market value of comparable legal services in the community for the type of work performed. (*PLCM Group, v. Drexler* (2000) , 22 Cal.4th 1084, 1095.) An hourly rate of \$1,200 to enforce a contract is excessive. The Court reduces the hourly rate to \$600, resulting in a lodestar of \$33,900 for 56.5 hours claimed.

F. Plaintiff cannot rewrite the parties Agreement

Here, the parties' Agreement holds the breaching party responsible for "all reasonable attorneys' fees and costs" incurred by the non-breaching party in enforcing the Agreement, including "demonstrating the existence of a breach and any other contract enforcement efforts." The Agreement does not state: (1) that attorney's fees shall be limited to those incurred in a Section 664.6 motion; (2) that pre-trial or trial related attorney's fees are excluded; (3) that fees may not exceed the amount in controversy; (4) that law and motion, case-management proceedings, trial preparation,

or post-judgment proceedings are non-compensable; or (5) that attorney's fees somehow become unrecoverable whenever opposing counsel later - in hindsight - identifies an arguably less expensive procedural alternative. Had the parties intended to impose any of those limitations, they could have done so.

G. Costs

Rule 3. 1700 of the California Rules of Court establishes a procedure for contesting costs through a motion to tax costs. (*Kaufman v. Diskeeper Corp.* (2014) 229 Cal. App. 4th 1, 8.) Defendants filed their Memorandum of Costs on June 1, 2026, concurrent with this Motion. Any Motion to Tax/Strike Costs on or before June 18, 2026. (CRC 3. 1700(b)(I).) Plaintiff waived any objection to Defendants' costs. (*Douglas v. Willis* (1994) 27 Cal.App.4th 287, 290.)

3.

CASE #	CASE NAME	HEARING NAME
CVRI2404359	OLW LAX INC. vs DENG	MOTION TO SET ASIDE ENTRY OF DEFAULT

Tentative Ruling: To the extent that self-represented defendant Elijah Deng moves to set aside the default entered against Lion King Trucking Inc. on October 24, 2024, the Court **DENIES** the motion as procedurally defective because a corporation must be represented by counsel. To the extent that self-represented defendant Elijah Deng moves to set aside the default entered against him on November 1, 2024, the Court **DENIES** that motion. Although Defendant asserts that he had no actual knowledge of the entry of default, he provides no evidence of that; i.e., no travel records, no passport stamps, and no other competent evidence to support this assertion.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2506582	MOORE-THILL vs SPICER	DEMURRER ON COMPLAINT

Tentative Ruling: The Court **SUSTAINS** the demurrer without leave to amend because Plaintiff has not articulated a basis to amend.

Statute of Limitations

A demurrer can be used only to challenge defects appearing on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318), and it is error for a court to consider facts asserted in a supporting memorandum. (*Ion Equipment Corp. v. Nelson* (1980) 110 Cal.App.3d 868, 881; *Afuso v. United States Fid. & Guar. Co.* (1985) 169 Cal.App.3d 859, 862, *disapproved on other grounds* in *Moradi-Shalal v. Fireman's Fund Ins. Co.* (1988) 46 Cal.3d 287.) Thus, a demurrer based upon a statute of limitations only lies where the